



ROYAL SCHOOL OF LAW AND ADMINISTRATION

RSLA

SYLLABUS

&

COURSE STRUCTURE

LL.M. (1 YEAR)

STRUCTURE OF THE SYLLABUS FOR 1-YEAR PG PROGRAMME (LLM)

SCHOOL NAME - ROYAL SCHOOL OF LAW AND ADMINISTRATION
DEPARTMENT NAME - LAW
PROGRAMME NAME - LLM

1st SEMESTER				
COURSE CODE	COURSE TITLE	LEVEL	CREDIT	L-T-P
LAW124C101	Research Methods & Legal Writing	Sem 1	3	3-0-0
LAW124C102	Comparative Public Law	Sem 1	3	3-0-0
Constitution and Administrative law Group				
LAW124D101	Centre State relations and Constitutional Governance	Sem 1	2	2-0-0
LAW124D102	Fundamental rights and Directive Principles	Sem 1	2	2-0-0
Criminal Law Group (CR)				
LAW124D103	Victimology	Sem 1	2	2-0-0
LAW124D104	Criminology & Criminal Justice Administration	Sem 1	2	2-0-0
Discipline Specific Elective (Anyone)				
LAW124D107	Media Law (CL)	Sem 1	2	2-0-0
LAW124D108	Cyber-crimes (CR)	Sem 1	2	2-0-0

TOTAL CREDIT FOR 1st SEMESTER			12	
2nd SEMESTER				
COURSE CODE	COURSE TITLE	LEVEL	CREDIT	L-T-P
LAW124C201	Law & Justice in a Globalized World	Sem 1I	3	3-0-0
LAW124P202	Dissertation	Sem 1I	3	3-0-0
Constitutional Group (CL)				
LAW124D201	Administrative Law	Sem 1I	2	2-0-0
LAW124D202	Local – self Government & Federal Governance	Sem 1I	2	2-0-0
Criminal Law Group (CR)				
LAW124D203	White Collar Crimes	Sem 1I	2	2-0-0
LAW124D204	Sentences & Sentencing	Sem 1I	2	2-0-0
Discipline Specific Elective				
LAW124D207	Health Law (CL)	Sem 1I	2	2-0-0
LAW124D208	Criminal Justice System and Human Rights (CR)	Sem 1I	2	2-0-0

TOTAL CREDIT FOR 2 nd SEMESTER	12	
TOTAL CREDIT FOR 1 st YEAR = 24		

SCHEME OF EVALUATION

Theory Papers (T):

- **Continuous Evaluation: 10%**
(Type of evaluation)
- **Mid-term examination: 20%**
- **End term examination: 70 %**

Practical Papers (P):

- **Continuous Evaluation: 10%**
(Type of evaluation)
- **Mid-term examination: 20%**
- **End term examination: 70 %**

Combined Theory & Practical Papers (TP):

- **Continuous Evaluation: 10%**
(Type of evaluation)
- **Mid-term examination: 20%**
- **End term examination: 70 %**

ROYAL SCHOOL OF LAW AND ADMINISTRATION

LL.M (1YEAR)

Level: Semester I

Title of the Paper: Research Methods & Legal Writing

Course Code: - LAW124C101

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
1. Lecture	
2. Assignment /PPT	
3. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

UNIT I: INTRODUCTION

- Meaning Objectives characteristics significance of Research
- Meaning characteristics objectives of legal research
- Types of legal research: Doctrinal and Non doctrinal

Methods for legal research

- Analytical method
- Historical method
- Empirical method(socio-legal)
- Scientific method
- Comparative method
- Ethical method

- Statistical method
 - Critical method

Research problem

- Meaning of research problem
- Types of research problem
- Criteria of research problem

Evaluation of research problem

UNIT II: RESEARCH DESIGN

- Workable Hypothesis-formulation and evaluation
- Concepts and types in research design

Research Techniques

- Sampling(types)
- Survey and Case Study method
- Scaling and Content Analysis

UNIT III: RESEARCH TOOLS AND DATA PROCESSING

- Observation
- Interview and schedule
- Questionnaire
- Socio-metrics and jurimetrics

Data processing (deductions and Inductions) analysis and interpretation of data

UNIT IV: LEGAL WRITING

- Report/article writing in legal research
- Use of definitions, maxims, concepts, principles, doctrines in legal research
- Citation methodology
- Book review and case comments
- Plagiarism and Copyright Infringement

Keywords: *Research, Methods for legal research, Legal writing*

References:

1. S.R Myneni, *Legal Research Methodology* (Allahabad Law agency)

2. C.R. Kothari, *Research Methodology: Methods and Techniques* (New Delhi: Wiley Eastern Ltd., 1985).
4. Dennis P. Force and Stephen Richer (ed.), *Stages of Social Research – Contemporary Perspectives* (New Jersey, Prentice Hall Inc., Englewood Cliffs, 1970)

Level: Semester I

Title of the Paper: Comparative Public Law

Course Code: - LAW124C102

Marks/ Credits: 100/3

TEACHING LEARNING PROCESS	
4. Lecture	
5. Assignment /PPT	
6. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

UNIT I: PUBLIC LAW – CONSTITUTION AND ADMINISTRATIVE LAW

- Concept of Constitution
- Meaning and Idea of Constitution, Nature and Goals
- Living Constitution
- Constitution as Supreme Law
- Study of Comparative Constitutional Law

Concept, Distinction between Constitution and Constitutionalism

UNIT II:

- Fundamental Rights, Independence of Judiciary and Judicial Review
- Constitutional foundations of powers
- Supremacy of Legislature in Law Making

Rule of law

- Dacey's Concept of Rule of Law

- Modern Concept of Rule of Law
- Social and economic rights as part of rule of law

Separation of powers

- Concept of Separation of Powers
- Checks and Balances
- Separation of Powers or Separation of Functions

UNIT III: FORMS OF GOVERNMENTS

- Federal and Unitary Forms
- Features, Advantages and Disadvantages
- Models of Federalism and Concept of Quasi-federalism
- Role of Courts in Preserving Federalism
- Parliamentary and Presidential Forms of Government

Constitutional Review

- Methods of Constitutional Review
- Limitations on Amending Power: Comparative Perspective
- Theory of Basic Structure: Origin and Development

UNIT IV: COMPARATIVE CRIMINAL LAW – COMMON LAW, CIVIL LAW

- Domestic Violations – International, National
- Provisions relating to Rape
- Plea Bargaining – USA, India
- White Collar Crimes
- Juvenile Justice

Keywords: *Public Law, Forms of Governments, Comparative Law*

References:

1. K. S. Shukla and S. S. Singh - *Lokayukta - A socio legal study*.
2. Bondenheimer : Jurisprudence – *The Philosophy and Method of Law* (1996)
Universal, Delhi
3. Salmond: *On Jurisprudence*
4. N.V. Paranjape- *Jurisprudence and Legal Theory*(2012)

5. R. W. M. *Dias*. (Second edition of ***Dias*** and. Hughes on ***Jurisprudence***)
6. David Strauss, *The Living Constitution* (Oxford University Press, 2010)

Level: Semester I

Title of the Paper: Center-State Relations & Constitutional Governance

Course Code: - LAW124D101

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
7. Lecture	
8. Assignment /PPT	
9. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

COURSE OUTLINE

UNIT I: NATURE OF INDIAN FEDERATION

- Position of states- Indian federation
- Nature of Indian polity
- Central bias

UNIT II: THEORY OF TERRITORIAL NEXUS

- Distribution of legislative powers
- Interpretation of lists:
- Pith and substance
- Colorable legislation
- Ancillary powers
- Occupied field
- Non obstante clause
- Law of taxation
- Repugnancy between central and state laws
- Residuary powers

- Centre's power
- Legislation on state subjects
- Control on state legislation

UNIT III: ADMINISTRATIVE RELATIONS

- Distribution of administrative powers
- Delegation of Union's function to states
- Administrative co-ordination
- All India services
- Full faith and Credit clause

UNIT IV: FINANCIAL RELATIONS

- Imposition of tax authority of law
- Fees
- Allocation of taxing powers
- Restrictions on taxing powers
- Financial equilibrium
- Borrowing powers
- Finance commission
- Impact of emergency on center state relation
- Sarkaria Commission.

Keywords: *Indian federation, financial relations, Administrative relations*

References:

1. M.P. Jain Constitutional Law of India (1994) Wadhwa H. M. Seervai,
2. Constitutional Law of India Vol.1 (1991) Tripathi, Bombay.
3. Justice E.S.Venkataramaiah, Freedom of Press: Some Recent Trends (1984)
4. M.P. Jain, Constitutional Law of India (1994) Wadawa, Nagpur H.M. Seervai,
Constitutional Law of India 2002 Vol. 1 Universal
5. John B. Howard, "The Social Accountability of Public Enterprises" in Law and Community

6. Controls in New Development Strategies (International Centre for law in Development 1980)

Level: Semester I

Title of the Paper: FUNDAMENTAL RIGHTS & DIRECTIVES PRINCIPLES

Course Code: LAW124D102

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
10. Lecture	
11. Assignment /PPT	
12. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

COURSE OUTLINE

Unit I:

- Concept of Fundamental Rights and Relation with Natural Rights
- Enforcement of Fundamental Rights
- Definition of 'State' - Rights against state
- Rights against non-state actors

Unit II:

- Is there need to enlarge the definition of State?
- Fundamental Rights: Limitations, Suspendability and Amendability Remedies against Violation/Threat of Violation of Fundamental Rights – Effects of Indemnity Granted under Article 34. Significance and Importance of Fundamental Duties

Unit III:

- Significance of Directive Principles of State Policy and their Unenforceability
- Emerging Regime of New Rights and Remedies under the Garb of Fundamental Rights –
- Use of DPSP and International Instruments in Interpreting FRs. Constitutional Torts

Unit IV:

- FRs and Judicial Review
- Reasonableness Test and Strict Scrutiny Test
- Rights Test and Essence of Rights Test

Keywords: *Fundamental Rights, State Actors, Judicial Review*

References:

1. M.P.Jain Constitutional Law of India (1994) Wadhwa H.M. Seervai,
2. Constitutional Law of India Vol.1 (1991) Tripathi, Bombay.
3. Justice E.S.Venkataramaiah, Freedom of Press: Some Recent Trends (1984)
4. M.P. Jain, Constitutional Law of India (1994) Wadawa, Nagpur H.M. Seervai, Constitutional Law of India 2002 Vol. 1 Universal
5. John B. Howard, "The Social Accountability of Public Enterprises" in Law and Community
6. Controls in New Development Strategies (International Centre for law in Development 1980)

Level: Semester I

Title of the Paper: Victimology

Course Code: - LAW124D103

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
16. Lecture	
17. Assignment /PPT	
18. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

Unit I:

- Foundations and basic concept of victimology,
- Definition nature and scope; Historical background; types positivist radical critical
- Who are a victim characteristic, dimensions?
- Victims of violent crimes typologies of victims, victims in criminal justice retributive justice UN declarations on victims and guide for policy makers (1998)

Unit II:

- Patters and impact of crime victimization:
- Victims of traditional/ conventional crimes,
- gender based violence interpersonal violence, hate crime domestic violence

- Sexual assault, child abuse child trafficking and child Labour caste atrocities communal riots and genocide cultural victimization elderly victimization, trauma, post-traumatic stress disorder, social exclusion, Stockholm Declaration, battered women syndrome, cycle of domestic violence, Rape trauma syndrome

Unit III:

- UN declaration of Human rights,
- Fundamental rights under Indian constitution, national and international concern of for victims, international criminal court amnesty international, world society of victimology,
- Indian society of victimology, victim compensation in India, national relief fund, criminal amendment Act (2013),
- National disaster management authority.

Unit IV:

- Victim Assistance: Necessity of victim assistance schemes, goals and objectives types of victim services, service from police, role of Judiciary and community, recognizing the victim, court process post sentencing Legal aid crisis intervention basic concepts of counselling and psycho-therapy, other professionals:
- Mental health and child protection services. National organization for victim assistance

References:

1. Ranjanv.n: Victimology in india perspectives beyond frontiers, New Delhi, Ashish publishing House
2. Karmen: Crime Victims : Introduction to Victimology, Boston Learning Centre
3. Das, Bharat. B. Victims in criminal Justice System, new Delhi APH Publishing Corporation
4. Hosting Von Hans: The Criminal and his victims, New York: Stockholm Books
5. Mawby R I, & Gill Crime victims: needs services and colantory sector. London

Level: Semester I

Title of the Paper: Criminology & Criminal Justice Administration

Course Code: - LAW124D104

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
19. Lecture	
20. Assignment /PPT	
21. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

Unit I:

- General principles of Crime & Criminology :
- Definition of crime, Fundamental elements of criminal liability, Crime causation, Stages of crime: Intention, preparation, attempt, and commission; Theoretical explanation for crime: Biological theories, psychological theories, sociological theories and integrated perspectives;

General explanations and exceptions.

- (b) Origin, nature, and scope of criminology; Criminology as a science and its relations with other social sciences; Schools of criminology; Concepts related to crime and criminals; Contemporary thoughts of criminology.

Unit II:

- Criminal Justice System: Components, Functions and Impact:
- The Police and Policing Roles; Styles and Functions ;Police

- Powers: Investigation, Arrest and Interrogation; Legal
- protection& Rights of the Accused; Issues and Challenges.
- The Courts: Court Role & Structure; Prosecution and
- Defenses; Sentencing ; Concepts and Theories of
- Punishment; Alternative to Punishment.
- Prison System in Criminal Justice : Open and Closed Prison
- System; Classification of Prisoners; Rehabilitation of
- Prisoners.

Unit III:

- Probation, Parole and Community Correction:
- History of Probation; Eligibility for Probation; Conditions
- of Probation; Pre-Sentence Investigation.
- History of Parole ; Role of Parole Boards; Probation and
- Parole Revocation; Intermediate sanctions .

Unit IV:

- Criminal Law in the Welfare State:
- Enforcing Human Rights; Access to Justice, Concept of
- Fair Trial; Fair Treatment and Assistance; Compensation to
- Victims of crime ; Current Issues and Challenges for
- reforms.
- Juvenile Justice: History of Juvenile Justice, The Problems
- of Children today; Juvenile Delinquency Theories; Legal
- Rights of Juveniles; Juvenile Justice Process; Juvenile
- Dispositions; Juvenile Waiver; Salient Features of Juvenile
- Justice (Care and Protection of Children) (Amended)
- Act, 2006.

Keywords: *Juvenile, Probation, Parole,criminal Justice*

References:

1. Banerjee, Tapas Kumar, :*Background to Indian Criminal Law* (1990).
2. Devlin, P. *The Criminal Prosecution in England*.
3. Sanders & Young: *Criminal Justice* (1994)
4. Sharam, P. D. :*Police and Criminal Justice System in India*.
5. Huda, S. Shamsull, *The Principles of the Law of Crimes*(1982).

Level: Semester I

Title of the Paper: Media Law

Course Code: LAW124D105

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
13. Lecture	
14. Assignment /PPT	
15. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination: 50 marks • Internal Assessment: 50 marks	
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

COURSE OUTLINE

Unit I:

- Introduction
- Evolution of Media
- Types of media:
 - Print
 - Electronic
- E-Media – Free Flow of Information beyond boundaries and barriers
- Difference between Visual and non- Visual Media - impact on People

Unit II:

- Freedom of Speech and Expression -Article 19 (1) (a)
- An introduction to Freedom of expression
- Evolution of Freedom of Press
- Restrictions under Constitution Article 19 (2)
- Government Power to legislate - Article 246 read with the Seventh

- Schedule.
- Power to impose Tax -licensing and licence fee.
- Advertisement & Ethics: Misleading Advertisement vis-à-vis Consumers rights

Unit III:

- Law of defamation and obscenity
- Defamation
- Libel
- Slander
- Obscenity
- Sedition
- Films-How far included in freedom of speech and expression Censorship of films- constitutionality
- The Abbas Case
- Difference between films and press-why pre-censorship valid for films but not for the Press?
- Censorship under the cinematograph act 1952

Unit IV:

- Radio and Television-Government monopoly-
- Indian Telegraphy act 1885
- Report of the Chanda Committee
- Government Policy 19
- The PrasarBharati act 1990
- Broadcasting Service Regulation act 2007
- Media Trials
- Sting operations

Keywords: *Media Law, Defamation, Radio, broadcasting*

References:

1. John B.Howard, "The Social Accountability of Public Enterprises" in Law and Community Controls in New Development Strategies (International Centre for Law in Development 1980) Bruce Michael Boyd, "Film Censorship in India A Reasonable Restriction on Freedom of Speech and Expression" 114.J.I.L.I.501 (1972)

2. Rajeev Dhavan "On the Law of the Press in India" "26.J.I.L.I. 288 (1984)
3. Rajeev Dhavan, "Legitimizing Government Rhetoric: Reflections on Some Aspects of the Second Press Commission" 26, J.I.L.I 391 (1984)
4. D.D. Basu, *The Law of Press of India* (1980)
5. John B. Howard, "The Social Accountability of Public Enterprises" in Law and Community
6. Controls in New Development Strategies (International Centre for law in Development 1980)
7. Bruce Michael Boys, "Film Censorship in India: A Reasonable Restriction on Freedom of Speech and Expression" 14 J.I.L.I. 501 (1972).

Level: Semester I

Title of the Paper: Cyber Crimes

Course Code: LAW124D106

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
• Lecture • Assignment/PPT • Individual & Group Discussion	
COURSE EVALUATION	
• Semester End Examination: 50 marks • Internal Assessment: 50 marks (Projects: 20, Mid Semester Examination: 20, Class Assignments: 05, Attendance: 05)	

COURSE OUTLINE

UNIT I: INTRODUCTION & CONCEPT OF CYBER CRIME

- Introduction and Historical Background
- Computer Crime & Conventional crimes
- Classification of cybercrimes
- Types of cybercrimes
- Elements of Cybercrime
- Cybercrimes related to IPRs
- Cyber Jurisdiction
- Case Studies in Cybercrime

UNIT II: LEGAL FRAMEWORK & POLICIES

- Information Technology Act, 2000
- Information Technology (Amendment) Act, 2008
- Digital India Act, 2023
- Digital Personal Data Protection Act, 2023
- Electronic Records and Provisions of Bharatiya Sakshya Adhiniyam, 2023
- Cyber Crime Offences under the Bharatiya Nyaya Sanhita, 2023
- International Cybercrime Legal Regime
- Cybercrime and Human Rights
- Legal Issues in Cyber Investigations: Jurisdiction

UNIT III: CYBERCRIMES INVESTIGATION & COUNTER-MEASURES

- Cyber Forensics and Cyber Security
- Digital Evidence
- Chain of Custody
- Search, seizure and preservation of digital evidence
- CERT-In
- Cyber Appellate Tribunal
- Forensics Division of State, Central Government and Cyber Cells
- Information Security: Best Practices in India

- Network security and Wireless Security
- International Cooperation in Investigating Cyber Crimes

UNIT IV: EMERGING TRENDS & FUTURE CHALLENGES

- Impact of AI, IoT, blockchain and new vulnerabilities
- Social Engineering Attacks: Techniques, Prevention & Case Studies
- Cyber Crime and Artificial Intelligence
- Cyber Warfare: State-sponsored cyber attacks
- Cyber Crime and the Dark Web
- Cyber Crime and Global Security
- Predicting and Preventing Future Cyber Threats

Keywords: *Cybercrime, regulations, security measures, cyber forensics*

References:

- Information Technology Law & Practice: Cyber Laws & Laws Relating to E-Commerce (2021), Vakul Sharma & Seema Sharma.
- Cyber Laws in India (2017), Dr. Farooq Ahmed.
- Cyber Laws (2020), Justice Yatindra Singh.
- Cyber Forensics in India: A Legal Perspective (2017), Nishesh Sharma.
- Cyber Forensics (2018), Dejeey Murugan.
- Crime, Criminal Justice and the Internet (1998), Walker.

Level: Semester II

Title of the Paper: Law & Justice in a Globalized World

Course Code: - LAW124C201

Marks/ Credits: 100/3

TEACHING LEARNING PROCESS	
31. Lecture	
32. Assignment /PPT	
33. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

Unit I: Introduction

- Meaning and significance of Globalization
- concept of Global Justice
- Global Justice and Right to Development

Theoretical Propositions of Global Justice

- Realism
- Particularism
- Nationalism
- Cosmopolitanism

Unit II: Legal Theory

- Concept of Law by Plato
- Aristotle's concept of law
- Law and morals
- Law and ethics
- Natural law theory

- Positivist approach to law: Austin, Kelson
- Sociological Jurisprudence: Pound
- American Realism: Frank, Llewellyn

Unit III: Theories of Justice

- Theory of utilitarianism
- Marxist approach to justice, Aristotle
- Rawls theory of justice
- Ronald Dworkin's theory of Justice
- Amartya Sen's theory of justice
- Feminist theories on justice

Unit IV: Core issues on Globalization

- Transnational applicability
- Limits on enforceability of national law
- International models of regulation
- Changing concept of property
- Different concepts of property
- Property in modern industrial society
- Intellectual property
- Changing functions of Contract
- Criminal laws in changing world
- Economic crimes, environmental pollution, cyber crimes
- Criminal liability of corporations
- Inquisitorial system
- Plea bargaining
- Witness protection scheme
- Compounding of offences
- Changing concepts of family

Keywords: Legal theory, Global Justice, Changing concepts

References:

1. Allen Buchanan. Justice, Legitimacy, and Self-determination: Moral Foundations for International Law. Oxford 2004.
2. Simon Caney, *Justice Beyond Borders*. Oxford:, 2005
3. Nicole Hassoun. 2008a. "World Poverty and Individual Freedom." American

Philosophical Quarterly. Vol. 45, No. 2: 191-198.

4. Andrew Hurrell. 2001. "Global Inequality and International Institutions." *Global Justice*.
5. Thomas Pogge ed. *Meta-philosophy Series in Philosophy* A.T. Maroobian and Brian Hushle eds. Blackwell Publishing: Oxford.
6. Martha Nussbaum, *Frontiers of Justice*. Cambridge, Mass.: Harvard University Press, 2006.
7. Thomas Pogge, *World Poverty and Human Rights*. Cambridge: Polity, 2002.
8. John Rawls, *The Law of Peoples*. Cambridge, Mass.: Harvard University Press, 1999

Level: Semester II

Title of the Paper: Dissertation

Course Code: - LAW124P202

Marks/ Credits: 150/3

Course Objectives	Teaching	Learning Outcomes	Course Evaluation
This paper will prepare the students for their research career and will provide them knowledge of research methodology	Learning Process Individual Presentation	The students will be shown the path of productive research as because they will become acquainted with the methods and techniques of research	TP

Course Outline

1. Students are required to submit a dissertation containing minimum of 15,000 words (main text) in the partial fulfillment of the Degree.
2. Dissertation carries three credits and a total of 100 marks, which includes the following components and marks.

Sr. No.	Components	Marks
1	Synopsis	10
2	Synopsis Presentation	15
3	Pre-submission presentation	25
4	Thesis/ Dissertation	50
	Total Marks	100

The topics and guidelines for the dissertation shall be provided during the semester

Keywords: Dissertation, Research,

Level: Semester II

Title of the Paper: Administrative Law

Course Code: - LAW124D201

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
34. Lecture	
35. Assignment /PPT	
36. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

Unit I: Administrative Law

- Definition, Nature, Scope and Functions
- Growth of Administrative Law in India
- Basic Constitutional Principles: Indian Perspectives
- Natural Justice principles
- Rule of Law
- Separation of Powers

Unit II: Delegated Legislation

- Importance, Need and Constitutionality of Delegated Legislation
- Conditional Legislation
- Controls on Delegated Legislation

The Concept of Judicial Review

- Judicial Review of Legislation
- Judicial Review of Administrative Actions

- Grounds
- Scope – Permissibility of Merits Review
- Limits on Judicial Review
- Doctrine of Political Questions

Constitutional Framework for Judicial Review of Administrative Actions

- Power and Jurisdiction of the Supreme Court
- Power and Jurisdiction of High Courts
- Subordinate Courts and Judicial Review

Judicial Activism as an Extension of Power of Judicial Review

- Exclusion of Judicial Review

Unit III: Lokpal and Lokayukta

- Right to Information
- Vigilance Commission
- Comptroller and Auditor - General of India
- Commissions of Inquiry
- Ombudsman

Unit IV: Comparative Administrative Law

- French concept of Separation of Powers and Administrative Courts
- Droit Administratif
- Administrative courts in France
- Scope of Judicial Review in UK
- Scope of Judicial Review in US
- Public Interest Litigation in India and US
- Global Administrative Law
- Globalization and Global Governance (Public, Private and Hybrid)
- Global Administrative Law: Perspectives of Developing Countries

Keywords: *Administration, Theories, judicial review, Lokpal*

References:

1. M.P.Jain Constitutional Law of India (1994) Wadhwa H.M. Seervai,
2. Constitutional Law of India Vol.1 (1991) Tripathi, Bombay.

3. M. P. Jain, S. N. Jain - *Principles of Administrative Law* 2002 Vol. 1 Universal Publication

Level: Semester II

Title of the Paper: Local -Self Government & Federal Governance

Course Code: - LAW124D202

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
37. Lecture	
38. Assignment /PPT	
39. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

Unit I: Evolution of Local Self Government in India

- Lord Ripen's Resolution
- Royal Commission.
- Community development programme, National Extension Service.
- The Balvant Rai Mehta committee report
- Vasant Rao Naik committee report

Unit II: 73rd and 74th Constitutional amendments

- Subject matters of 11th and 12th Schedule of the Constitution of India
Constitutional division of power to legislate
- Rural local self-government
 - Importance of Rural local self-government
 - Rural local self government :Origination
- Powers and functions of Rural local self government

Unit III: Significance Urban local self-government

- organization of Urban local self-government

- Urban local self-government: powers and functions and political empowerment

Unit IV: Local Self Government and Sarkaria Commission

- Sarkaria Commission Report: An Analytical Study
- Finance and Local self Govt; Bureaucracy and Local self Govt
- Women's reservation in Panchayat and its effects

Keywords: Local Self Government, Panchayat, Zilla Parishad, Sarkaria

References:

1. S.P. Aiyar and U. Mehta (eds.), *Essays on Indian Federalism*, Bombay, Allied Publishers, 1965.
2. D.D. Basu, *An Introduction to the Constitution of India*, New Delhi, Prentice Hall, 1994 (in Hindi also)
3. K.R. Bombwall, *The Foundations of Indian Federalism*, Bombay, Asia Publishing House, 1967.
4. R. Khan, *Rethinking Indian Federalism*, Shimla, Indian Institute of Advanced Studies, 1997. 18
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7. P. Kumar, *Studies in Indian Federalism*, New Delhi, Deep and Deep 1988.
8. Z. Hasan (ed.), *Parties and Party Politics in India*, New Delhi, OxfordUniversity press, 2001.

Level: Semester II

Title of the Paper: White Collar Crimes

Course Code: - LAW124D203

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
43. Lecture	
44. Assignment /PPT	
45. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

COURSE OUTLINE

Unit I:

- Origin evolution of WCC, definitions, typology, Edwin and Sutherland and WCC, Forms in India, Organized crimes Cyber space as a mode of facilitation of WCC, Role of Media, Law enforcement agency, social movements and political institutions

Unit II:

- Bribery and corruption: Definition, Bribery and Corruption in India, Public and Private sectors, prevention of Corruption act 1988, RTI, 2005, Jan Lokpal and lokayukta, UN against corruption 2009, anti-corruption Movements in India, Role of National and International institutions

Unit III:

- Corporate Crimes: An overview Of corporate crime, Corporate crime in Globalized economy, types of corporate crime corporate crime against

government, investors, consumers and workers, case studies on corporate crimes, legal provisions, Impact on Indian economy

Unit IV:

- Money Laundering: Introduction, National and international Overview, Drugs and terrorism, current trends of *modus operandi* Anti-money laundering act 2002, prevention of illicit traffic in narcotic drugs and psychotropic substances 1988, Directorate of Enforcement, consequences of money laundering on Indian Economy Anti-money laundering act 2002, prevention of illicit traffic in narcotic drugs and psychotropic substances 1988, Directorate of Enforcement, consequences of money laundering on Indian Economy

Keywords: *White Collar, Organized Crime, Bribery, corruption*

References:

1. Prevention of Corruption act 1988
2. Prevention of money laundering act 2002
3. Prevention of illicit traffic in narcotic drugs and psychotropic substances act 1988
4. Lal, b (2003): Money laundering: An insight into the dark world of financial fruds; Delhi Siddarth Publications
5. Pontell(2010) Introduction: White collar and corporate Crimes in Asia, Asian publications
6. United nation Convention against corruption, 2009
7. *White collar Crime: An overview* Cornell university law School(2009):

Level: Semester II

Title of the Paper: Sentences and Sentencing

Course Code: - LAW124D204

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
46. Lecture	
47. Assignment /PPT	
48. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

Unit I: Concept, Nature and Scope of Punishment:

- Concept and Nature of Punishment
- Object and Purpose of Punishment
- Punishment: Philosophical and Sociological Justification
- Hindu Jurisprudence on Punishment
- Sentencing, experience of the Developing Societies
- Forms of Punishment
- Judicial Approaches to Punishment

Unit II: Jurisprudential Issues & Theories of Punishment:

- Transcendentalists Vs. Utilitarians
- Kelsonites Vs. Benthamites
- The Theories of Punishment
- Retribution: Limiting Retributivists; Rule Retributivists.
- Deterrence : General Deterrence & Specific Deterrence.

- Incapacitation : Behaviour Prevention
- Traditional Hindu & Islamic Approaches.
- Western Ideas of Restorative Justice
-

Unit III: Legislative & Judicial Approaches to Sentencing:

- Principal Types of Sentencing under I.P.C.
- Limited Legislative Guidance on Sentencing: Maximum & Minimum.
- Judicial Discretion & Sentencing: Sentencing Disparity; Subjective & Judge-Centric Sentencing.
- The Problems of Default Sentence: Imprisonment for non- payment of Fine.
- Right to Pre- Sentence Hearing U/S. 235(2) & 248(2) Cr.P.C.
- Sentencing for Habitual Offenders.
- Summary Punishment.
- Sentencing Process & Marginalized Accused.
- Plea Bargaining.

Unit IV: Sentencing & Imprisonment:

- **Approaches to Sentencing: Alternative to Sentencing, Probation**
 - under the Probation of Offenders Act, 1958 : Sections- 3,4,6 & 12;
 - Probation under Cr.P.C. – Sections 360, 361, 256-E (a) &(b) ;
 - Probation & Judicial Process; Parole; Corrective Labour&
 - Rehabilitation; Fine ; Remission & Commutation of Sentence.
- **Death Penalty: Trend of abolition world over; Rententionist**
 - Countries & a “ rarest of rare” Sentence ; Death Penalty & Judicial
 - Process.
- **Imprisonment: Prison System & Prison Reforms; Classification of**
 - Prisoners; Prisoner’s rights & Duties ; Obligations of Custodial
 - Staff ; Open Prisons.

Keywords: *Punishment, Sentencing, Imprisonment*

References:

1. Hart, H.L.A., *Punishment and Responsibility*, 1968.
2. Herbert L.Packer : *The Limits of Criminal Sanction*, 1968
3. Chhabara, S. *The quatum of Punishment in criminal Law*, 1970
4. Nath, H.C. *Criminal Justice & Welfare*, 2009

5. Swamy, Dr. N. Maheshwari, *Criminology and Criminal Justice system*, Asia law House
6. Andrew ,A. :*The Sentencing Functions*, OUP, (2010)

Level: Semester II

Title of the Paper: HEALTH LAW

Course Code: - LAW124D205

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
40. Lecture	
41. Assignment /PPT	
42. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

Unit I:

- Concept of right to health and its enforcement, WHO & international conventions on health laws
- Health care administration in India, Globalization and the changing dimensions of health laws, Climate change and health, The relation between law and medicine, Medical ethics, Bio-ethics

Unit II:

- Legal control of drugs and cosmetics – Drugs and Cosmetics Act and Rules, Product liability for defective medicine – contractual liability, tortious liability, liabilities under the English and Indian Consumer Protection Acts, English Medicines Act
- Medical insanity – Types, medical and legal insanity, the watershed of medical and legal insanity – M'Naughton's case – Legal protection of mentally ill

persons with special reference to Mental Health Act, Liability of professional doctors for negligence and ethics

Unit III:

- Disabled people Disability Act 2017)Locomotor disability, hearing impaired, visually impaired, aged people, People suffering from occupational diseases, People subjected to Clinical trial.
- Medico-legal concept of death, asphyxia death, legal consequences of death, injuries under medicine and their medico-legal significance
- Post mortemreport – inquest
- Forensic medicine – the significance of forensic medicine and forensic evidence – Hippocrat’s oath
- Transplantation of Human Organs and Tissues Act, 1994

Unit IV:

- Reproductive health
- Termination of Pregnancy Legal issues,(MRTP Act,2003)
- Stem cell research,
- Pre-Conception and Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994

Keywords: *Health, Ethics, Forensic, Reproductive*

References:

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2. Chaudhri, V. K. Medical Jurisprudence and Toxicology. Allahabad: Dwivedi Law Agency, 2007.
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4. Herring, Jonathan. Medical Law and Ethics. Oxford; New York: Oxford University Press, 2006.
5. Jackson, Emily. Medical Law. 2nd ed. London: Oxford University, Press, 2010.
6. Kannan, Justice; Mathiharan.Dr. K. A. Textbook of Medical Jurisprudence and Toxicology. Nagpur: LexisNexis Butterworth Wadhwa, (1920).

7. Lewis, Charles. Clinical Negligence: A Practical Guide. 6th ed. Haywards Heath: Tottel, 2006.
8. Mason, J. K., et al. Mason & Mccall Smith's Law and Medical Ethics. 7th ed. Oxford: Oxford University Press, 2006.
9. McLean, Sheila. Contemporary Issues in Law, Medicine and Ethics. Aldershot: Dartmouth, 1996

Level: Semester II

Title of the Paper: Criminal Justice System and Human Rights

Course Code: - LAW124D206

Marks/ Credits: 100/2

TEACHING LEARNING PROCESS	
49. Lecture	
50. Assignment /PPT	
51. Individual and Group Discussion	
COURSE EVALUATION	
• Semester End examination:	50 marks
• Internal Assessment:	50 marks
(Projects: 20, Mid Semester Examination 20, Class Assignments: 05, Attendance: 05)	

Course Outline

Unit I:

- Meaning, Nature and Scope; Theories of Human Rights; Historical
- Perspective and Concepts; Constitutional Guarantee on Human Rights;
- Protection of Human Rights Act, 1993;
- United Nations Documents: Universal Declaration of Human Rights, 1948;
- International Covenants on HRs: International Covenant on Civil and Political Rights (ICCPR);
- International Covenant on Economic, Social and Cultural Rights (ICESCR); Optional Protocols;
- United Nations High Commissioner for Refugees (UNHCR);
- Internally Displaced Persons (IDP).

Unit II:

- Components of Criminal Justice System: Police, Courts and Prisons;
- CR.P.C . Rehabilitation NLSA, C.J.S. and its relevance to Human Rights: Handcuffing, Custodial Violence, Third – Degree method of Interrogation,
- Rights of the Accused,
- Rights of Under-trial Prisoners and Prisoners;
- Rights of victims of Human Rights violations;
- Access to Justice; Fair Treatment; Restitution, Assistance, Compensation to Victims.

Unit III:

- HRs Violations against Women;
- International Instruments relating to Women;
- Conventions on the Elimination of all forms of Discrimination against Women (CEDAW),1979;
- Rights of Women in Custody;
- HRs violations against Children; International Instruments relating to Children:
- UN Convention on the Rights of the Child (UNCRC) ,1989 and Protecting the rights of children in conflict with the law;
- National Campaign on Dalit Human Rights (NCDHR); HR s Advocacy and Research Foundation (HRF).

Unit IV:

- Advocacy and Redress of grievances at the National and International level;
- National Human Rights Commission and State Human Rights Commissions:
- Role, Structure and Functioning; International and National Non-Governmental Organizations working on Human Rights Protection:
- Amnesty International,
- International Red Cross Society,
- Human Rights Watch, Peoples Watch - PUCL, AIDWA.

Keywords: Criminal Justice, Human Rights, UN Conventions

References:

1. Diaz, S,M.*New Dimensions to the Police Role and Functions in India*, Hyderabad, National Police Academy (1976)
2. Ramanujam, T. *Prevention and detection of crime*, Madras Book Agency (1992)
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